

CENTRAL STATION MONITORING AGREEMENT



SECURITY SYSTEMS

FBS Security Systems Inc.
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New Jersey License No.: 34BF00005800

DATE OF AGREEMENT: _____

CUSTOMER NUMBER: _____

☐ Residential Account

☐ Commercial Account

CUSTOMER INFORMATION

Customer: _____ Customer Contact: _____

Address/Premises: _____

☐ IF SELECTED, SEE ATTACHED SCHEDULE OF ADDITIONAL PROTECTED LOCATIONS.

Mailing Address: _____

Phone Number: _____ E-mail: _____

☐ CENTRAL STATION SIGNALING SERVICE

☐ Fire Alarm ☐ Burglar Alarm ☐ Other: _____

☐ Telephone Line ☐ Cellular Radio ☐ Internet

☐ Video Monitoring

☐ REMOTE ACCESS SERVICE

☐ Total Connect© ☐ Alarm.Com© ☐ Other: _____

PAYMENT: \$ _____ Sales Tax \$ _____ TOTAL: \$ _____

Payable in advance: ☐ Monthly ☐ Quarterly ☐ Semi Annually ☐ Annually

TERM FOR COMPANY SERVICES

THE INITIAL TERM OF THIS AGREEMENT FOR THE CENTRAL STATION SIGNALING SERVICE AND/OR REMOTE ACCESS SERVICE IS AS FOLLOWS FROM THE “START DATE” (as defined below):

☐ 1 Year ☐ 2 Years ☐ 3 Years ☐ 5 Years ☐ Other: _____

AFTER THE INITIAL TERM EXPIRES, THIS AGREEMENT WILL AUTOMATICALLY AND CONTINUOUSLY RENEW FOR THE SAME TERM AS SELECTED ABOVE (“RENEWAL TERM(S)”), AT THE COMPANY’S THEN PREVAILING RATES. CUSTOMER AND COMPANY ALWAYS HAVE THE RIGHT TO STOP A RENEWAL TERM FROM OCCURRING BY SENDING WRITTEN NOTICE OF CANCELLATION OF THIS AGREEMENT TO THE OTHER PARTY AT LEAST THIRTY (30) DAYS BEFORE THE END OF THE INITIAL TERM OR APPLICABLE RENEWAL TERM.

- The “START DATE” for the INITIAL TERM is the date the System/Equipment is connected to and communicating with the Monitoring Subcontractor.

(FOR RESIDENTIAL TRANSACTIONS ONLY). YOU, THE CUSTOMER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY AFTER THE DATE OF THIS AGREEMENT. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT. BY SIGNING BELOW, CUSTOMER ACKNOWLEDGES RECEIPT OF TWO (2) COPIES OF THE NOTICE OF RIGHT OF RECISSION FORM.

THIS IS A MULTI-PAGE AGREEMENT. PLEASE READ AND UNDERSTAND THIS ENTIRE AGREEMENT, INCLUDING THE GENERAL TERMS BEFORE YOU SIGN BELOW.

CUSTOMER:

COMPANY:

Sign

Sign

Print Name

Print Name

Title: _____

Title: _____

GENERAL TERMS

1. CENTRAL STATION SIGNALING SERVICE.

If the Customer has contracted for Central Station Signaling Service (“Monitoring”), Company will subcontract the Monitoring to a central monitoring station (the “Monitoring Subcontractor”). Once the Monitoring Subcontractor receives an alarm signal from the System/Equipment at the protected locations specified in this Agreement (collectively, the “Premises”) (or video from surveillance cameras at the Premises (the “Cameras”), if the Customer has contracted for Central Station Remote Video Monitoring), indicating the necessity for response, the Monitoring Subcontractor will make reasonable efforts to communicate electronically or by telephone to the addresses and telephone numbers provided by Customer and/or the appropriate governmental agencies, if applicable, identified by the Customer. The Monitoring Subcontractor cannot control or be responsible for police or fire response time. Monitoring is not error-free. Alarm signals (and video, if applicable) are sent from the applicable System or Cameras to the Monitoring Subcontractor using the communications equipment at Customer’s Premises tied into the System and/or Cameras, which may include Customer’s regular telephone line(s); wirelessly, and/or the internet or cable system. Company is not responsible for the functioning of the communications equipment and, if it is not functioning, the Monitoring Subcontractor will not receive an alarm signal or video (if applicable) and will be unable to respond. If the Monitoring is for a System or Cameras owned by the Customer and previously sold and installed by others (“Pre-Existing System or Cameras”), the Company will attempt to connect the Customer’s Pre-Existing System or Cameras to the Monitoring Subcontractor for Monitoring. If any additions, modifications or repairs are required to the Pre-Existing System or Cameras to connect it, and Customer refuses to authorize or pay for the work, Company may terminate this Agreement on seven (7) days written notice to the Customer. Company did not sell, manufacturer, design or install the Pre-Existing System or Cameras and makes NO WARRANTIES OR REPRESENTATIONS CONCERNING THE PRE-EXISTING SYSTEM OR CAMERAS, THE DESIGN, CODE COMPLIANCE, OPERATION OR SUITABILITY, INCLUDING ANY WARRANTY OF MERCHANTABILITY OR FITNESS FOR PARTICULAR PURPOSE. Before Customer changes the communications equipment, Customer must first call Company because the new equipment may not work with the System or Cameras and the Monitoring Subcontractor may not receive any alarm signals or video (if applicable). Customer understands and agrees that the Monitoring Subcontractor may require Customer to sign a separate written contract for the Monitoring, which the Customer hereby agrees to sign. Company reserves the right to terminate the Monitoring, with no further obligation to Customer, upon ten (10) calendar days advance written notice to Customer in the event of (i) excessive runaway and/or false signals, or (ii) violations of the reasonable policies and procedures of the Monitoring Subcontractor. Monitoring shall immediately terminate, without prior notice, in the event of (i) the telephone lines, network, other communications equipment; software; or facilities of the Monitoring Subcontractor are destroyed, damaged, or are rendered inoperable; (ii) war, terrorism, fire, flood, extreme weather, accident, explosion, governmental or court order, strike, lockout or other labor troubles or any other cause beyond the reasonable control of the Monitoring Subcontractor for the duration of the interrupted service; or (iii) excessive runaway and/or false signals. The Customer hereby appoints the Company as the Customer’s agent for purposes of providing emergency contact information, direction and other requested information to the Monitoring Subcontractor. Further, the Customer (for itself/himself or herself, and each person identified by the Customer as an emergency contact), hereby consents to the Monitoring Subcontractor calling each such person’s cell phone number or other mobile device number for purposes of providing the Monitoring, if the Monitoring Subcontractor is so provided with such number by the Company or the Customer.

2. USE OF COMMUNICATIONS FOR MONITORING.

The Customer hereby consents to the Monitoring Subcontractor intercepting, recording, retrieving, reviewing, copying, disclosing and using for purposes of providing the Monitoring, the contents of all telephone, video, electronic and other related transmissions of communications.

3. REMOTE ACCESS SERVICES.

If the Customer has contracted for Remote Access Services (“Remote Services”), Customer will have wireless remote access to the applicable system, through a Customer owned and enabled electronic devices, for purposes of utilizing those Remote Services contracted-for in this Agreement. If Customer has contracted for the Remote Services, alarm notifications and related data will be wirelessly transmitted to the Customer’s enabled portable device so that the Customer may see what is activating the alarm, and utilize other features and functionalities enabled through the Remote Services. Upon receipt of any such alarm notifications and related data, the Customer is solely responsible for interpreting the data and implementing any plan of action, such as calling 911 or other appropriate emergency responders.

4. LIMITATIONS OF SERVICES.

Customer understands and agrees that the Monitoring and/or Remote Services are dependent for proper functioning on, among other things, the wireless transmission of data by and through various internet connections and services, related wireless networks and enabled and related hardware devices and other electronic equipment (the “Connections, Services and Devices”), none of which are error-free or 100% reliable or the responsibility of the Company. The Connections, Services and Devices may be interrupted, delayed, refused, or otherwise limited for a variety of reasons, including insufficient coverage, power outages, termination of service and access, environmental conditions, interference, non-payment of applicable fees and charges, unavailability of radio frequency channels, system capacity, upgrades, repairs or relocations, and priority access by emergency responders (collectively “Service and Equipment Interruption(s)”). Customer understands that Service and Equipment Interruptions may result in Remote Services being unreliable or unavailable for the duration of the Service and Equipment Interruption. Customer further understands and agrees that the Monitoring and/or Remote Services may be suspended temporarily without notice for security reasons, system failure, Service and Equipment Interruptions, maintenance and repair, or other circumstances beyond the reasonable control of the Company, and Customer agrees that no refund or rebate will be issued for any such suspension.

5. CUSTOMER’S DUTY TO PROVIDE ELECTRICAL, TELEPHONE AND INTERNET SERVICE.

If requested by Company, Customer agrees to furnish, at Customer’s sole expense, all required 110 volt AC power, electrical outlets, ARC Type circuit breaker and dedicated receptacle, internet connection, high speed broadband internet access and IP Address, telephone hook-ups, RJ31×Block or equivalent, and other electrical, telephone and internet access equipment, components and services as required or deemed reasonably necessary by the Company for any installation of Equipment or provision of any Services (i.e., Monitoring and/or Remote Services).

6. LIMITATION OF COMPANY’S LIABILITY.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IF COMPANY IS FOUND LIABLE FOR ANY LOSS OR DAMAGE DUE TO BREACH OF CONTRACT OR WARRANTY, NEGLIGENCE OF ANY KIND OR DEGREE, STRICT PRODUCT LIABILITY, SUBROGATION, INDEMNIFICATION, CONTRIBUTION, OR ANY OTHER THEORY OF LIABILITY ARISING FROM OR RELATING TO THIS AGREEMENT, COMPANY’S MAXIMUM LIABILITY WILL BE LIMITED TO \$250.00, AND THIS LIABILITY SHALL BE SOLE AND EXCLUSIVE. COMPANY MAY ASSUME A GREATER LIABILITY, BUT ONLY FOR AN ADDITIONAL CHARGE TO BE AGREED UPON BY CUSTOMER AND COMPANY IN WRITING. THIS LIMITATION OF LIABILITY SPECIFICALLY COVERS LIABILITY FOR, AMONG OTHER DAMAGES, DIRECT DAMAGES, CONSEQUENTIAL DAMAGES, PERSONAL INJURY AND LOSS OF LIFE. THIS LIMITATION OF LIABILITY SHALL NOT APPLY TO ANY RECKLESSNESS, WILLFUL, WANTON OR INTENTIONAL MISCONDUCT OF THE COMPANY, OR ANY OTHER THEORY OF LIABILITY THAT, UNDER APPLICABLE LAW, MAY NOT BE THE SUBJECT OF A LIMITATION OF LIABILITY CLAUSE.

7. WAIVER OF SUBROGATION.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW AND NOT PROHIBITED BY THE APPLICABLE POLICIES OF INSURANCE, CUSTOMER RELEASES COMPANY FROM ANY LIABILITY FOR ANY LOSS, EVENT OR CONDITION COVERED BY CUSTOMER’S INSURANCE.

8. THIRD PARTY INDEMNIFICATION.

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, CUSTOMER AGREES TO INDEMNIFY, DEFEND, RELEASE AND HOLD COMPANY HARMLESS FROM AND AGAINST (I) ALL CLAIMS, ACTIONS, LAWSUITS AND ANY OTHER LEGAL ACTION BROUGHT BY ANY THIRD PARTY AGAINST THE COMPANY ARISING IN ANY WAY FROM THIS AGREEMENT (A “THIRD PARTY ACTION”); AND (II) ANY AND ALL RELATED LOSSES, DAMAGES, SETTLEMENTS AND JUDGMENTS (INCLUDING PAYMENT OF ATTORNEYS’ FEES AND COSTS OF THE COMPANY) INCURRED BY, ASSESSED OR FOUND AGAINST, OR MADE BY COMPANY RELATING TO OR ARISING FROM ANY SUCH THIRD PARTY ACTION (“THIRD PARTY RELATED LOSSES”), EVEN IF SUCH THIRD PARTY ACTION AND THIRD PARTY RELATED LOSSES ARISE FROM THE NEGLIGENCE OF ANY KIND OR DEGREE OF THE COMPANY, BREACH OF CONTRACT OR WARRANTY OR CONDITION, STRICT LIABILITY, OR ANY OTHER THEORY OF LIABILITY. THIS INDEMNIFICATION OBLIGATION SHALL NOT APPLY TO ANY RECKLESSNESS, INTENTIONAL OR WILLFUL OR WANTON MISCONDUCT OF THE COMPANY, OR ANY OTHER THEORY OF LIABILITY THAT, UNDER APPLICABLE LAW, MAY NOT BE THE SUBJECT OF AN INDEMNIFICATION CLAUSE.

9. MALWARE AND VULNERABILITIES NOTICE AND RELEASE.

Equipment that relies on wireless or internet connections or are connected to a network of any kind (such as security systems, communications equipment, cameras, wireless radios, access control, cloud storage, NAS storage, DVRs, NVR and other kinds of networkable security and other devices) may not be secure and may be exploited, corrupted or hacked by malware and spyware variants (“Malware and Vulnerabilities”). Malware and Vulnerabilities may provide a gateway for a person with malicious intent the capability to arm or disarm your system or related equipment; view, extract, change, destroy, steal, disclose or alter your data, or the data of others; monitor and/or spy on your activities and the activities of others; cause internet and network outages; provide for unintended or unauthorized access by others to your network, or the network of others; and otherwise place people, property or data at risk. THE COMPANY MAKES NO WARRANTY OR REPRESENTATION THAT THE EQUIPMENT OR SERVICES IS SECURE, DOES NOT HAVE, OR IS NOT SUSCEPTIBLE TO, MALWARE AND VULNERABILITIES. The Company assumes no liability whatsoever for any Malware and Vulnerabilities and, to the fullest extent permitted by applicable law, you agree to release and hold Company harmless from any Malware and Vulnerabilities and any related loss or damage of any kind or sort, even if caused by any breach of contract or negligence of any kind or degree of the Company (the “Malware and Vulnerability Release”). If the Malware and Vulnerability Release is not enforceable under applicable law for any reason, then the LIMITATION OF COMPANY’S LIABILITY in Section 6 of these General Terms shall apply to any losses or damages, of any kind or sort, arising from, or related to, Malware and Vulnerabilities.

10. CUSTOMER AGREEMENTS AND UNDERSTANDINGS.

Customer has the authority to sign this Agreement and in doing so will not violate any other agreement. It is the sole responsibility of Customer to test the operation of the Equipment at least weekly, and immediately notify Company of any need for service. Customer understands that the Equipment is designed to reduce, but not eliminate, certain risks. Company does not guaranty that the Equipment will prevent personal injury, property damage, or unauthorized entrances into the Premises. Customer understands and agrees that any subcontractor retained by Company to provide any of the services under this Agreement (including, without limitation, the Monitoring Subcontractor and any company providing hosting services for the Remote Services), are independent contractors and independent operating companies. There is no partnership, joint venture, employer/employee, master/servant, or other similar relationship between them. Customer agrees to register the System, if required by the local county, township or municipality.

11. REMEDIES.

IF CUSTOMER FAILS TO PERFORM ITS OBLIGATIONS UNDER THIS AGREEMENT (INCLUDING, WITHOUT LIMITATION, NON-PAYMENT OF ANY CHARGES DUE OR THE UNTIMELY TERMINATION OF ANY CONTRACTED-FOR SERVICES BEFORE THE END OF THE INITIAL TERM OR APPLICABLE RENEWAL TERM), THE CUSTOMER WILL BE IN BREACH OF THIS AGREEMENT, AND THE COMPANY MAY, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, AND WITHOUT ADVANCED NOTICE, TERMINATE THIS AGREEMENT, IN WHOLE OR IN PART, AND RECOVER FROM THE CUSTOMER THE FOLLOWING DAMAGES: (I) ALL AMOUNTS THEN DUE AND OWING BY THE CUSTOMER; (II) 80% OF THE AMOUNT DUE TO THE COMPANY FOR THE REMAINING UNEXPIRED INITIAL TERM OR APPLICABLE RENEWAL TERM, AS THE CASE MAY BE, FOR ANY SERVICES (i.e., MONITORING AND/OR REMOTE SERVICES) CONTRACTED-FOR UNDER THIS AGREEMENT (AS AN AGREED-UPON AMOUNT OF DAMAGES AND NOT AS A PENALTY); (III) COMPANY’S REASONABLE COLLECTION COSTS, INCLUDING ATTORNEYS’ FEES AND COSTS; AND (IV) ALL OTHER DAMAGES AND REMEDIES AVAILABLE UNDER APPLICABLE LAW. If Company waives any default, Company is not waiving other defaults. Any waiver by Company must be in writing.

12. LATE CHARGES/PRICE INCREASES.

All invoices from Company are due upon receipt, unless otherwise stated in writing. If Customer is more than ten (10) days late with payment, Company can charge Customer interest of 1.5% per month (18% per annum), or the maximum amount permitted by applicable law. THE COMPANY MAY INCREASE THE CHARGES FOR ANY SERVICES CONTRACTED-FOR IN THIS AGREEMENT (i.e., MONITORING AND/OR REMOTE SERVICES) DURING EACH APPLICABLE RENEWAL TERM AT THE COMPANY’S THEN PREVAILING RATES.

13. ASSIGNMENTS/SUBCONTRACTORS.

Customer may not transfer or assign this Agreement without Company’s prior written consent. Any assignment by Customer in violation of this Section 13 shall be void and of no legal effect. COMPANY MAY ASSIGN OR SUBCONTRACT THIS AGREEMENT (IN WHOLE OR IN PART) AND THE ASSIGNEE OR SUBCONTRACTOR (INCLUDING, WITHOUT LIMITATION, THE MONITORING SUBCONTRACTOR), WILL HAVE THE RIGHT TO ENFORCE, AND RECEIVE THE BENEFIT OF, ALL TERMS OF THIS AGREEMENT, INCLUDING, WITHOUT LIMITATION, LIMITATION OF COMPANY’S LIABILITY, THIRD PARTY INDEMNIFICATION AND WAIVER OF SUBROGATION.

14. JURY TRIAL WAIVER.

TO THE FULLEST EXTENT PERMITTED BY LAW, COMPANY AND CUSTOMER BOTH GIVE UP THE RIGHT TO A JURY TRIAL.

15. FALSE ALARM CHARGES.

In the event a fine, penalty or fee is assessed against Customer or Company because of any false alarm, failure of Customer to register the System or other reason or condition, Customer agrees to be solely responsible for payment, and shall reimburse the Company for any related fines, penalty or fees it pays, unless caused by the breach of contract, negligence or other wrongdoing of the Company.

16. DEFINITION OF COMPANY.

Company is defined herein to include the Company and its members, shareholders, partners, managers, directors, officers, employees, agents, representatives, parents, subsidiaries, affiliates, successors and assigns.

17. AGREEMENT FOR TELEPHONE/TEXT/EMAIL CONTACT.

The Customer (on behalf of the Customer and all family members, guests and persons on the call list) hereby expressly authorizes Company to contact Customer, at the telephone number(s) or e-mail address(es) provided to the Company, using an automated calling device, text, or email to deliver a message, set or confirm a service or installation appointment, notify of alarm alerts, for marketing related purposes or other updates or purposes related to this Agreement and Customer’s relationship with the Company.

18. MISCELLANEOUS.

This Agreement contains the entire understanding between Customer and Company relating to the subject matter hereof, and replaces any earlier discussions, agreements, proposals, purchase orders or contracts. This Agreement cannot be changed except by a writing signed by Customer and Company. If any provision of this Agreement is found to be invalid, the remaining provisions are still effective. The laws of the State of New Jersey shall govern and control the validity, interpretation and enforcement of this Agreement, without regard to the conflict of law principles. EXCEPT FOR SUBCONTRACTORS AND ASSIGNEES UNDER SECTION 13 ABOVE, THERE ARE NO THIRD-PARTY BENEFICIARIES TO THIS AGREEMENT. This Agreement is not binding on the Company until the earlier of: (i) Company signs this Agreement; or (ii) installation or services are commenced under this Agreement. In the event any provision of this Agreement is prohibited by, or is unlawful or unenforceable under governing law, such provision shall be ineffective to the extent of such prohibition without invalidating the remaining provisions of this Agreement, with the remaining provisions being in full force and effect.

SCHEDULE OF PROTECTED LOCATIONS

